



April 16, 2024

The Honorable Cathy McMorris Rodgers
Chair
House Energy and Commerce Committee
2188 Rayburn House Office Building
Washington, D.C. 20515

The Honorable Frank Pallone, Jr.
Ranking Member
House Energy and Commerce Committee
2107 Rayburn House Office Building
Washington, D.C. 20515

Dear Chair McMorris Rodgers and Ranking Member Pallone:

The Association of National Advertisers (“ANA”) and the American Association of Advertising Agencies (“4A’s”) support effective and preemptive federal privacy legislation, as evidenced by our founding role in Privacy for America and the creation of its *Principles for Privacy Legislation*.¹ We are committed to continuing our work with you and other members of Congress to support the enactment of such legislation. We write to share our concerns that certain provisions in the discussion draft of the American Privacy Rights Act (“APRA”)² would negatively impact the advertising industry and the multitude of benefits it provides individuals, businesses, and the economy.

Most notably, the bill could significantly limit the ability of advertisers in every Congressional District (businesses, nonprofits, political campaigns, and the government alike) to reach their customers at the most relevant time and with the most relevant message with targeted advertising, defined in the bill as the mere sending of an advertisement based on a preference of the recipient. In our experience, consumers desire relevant advertising, not spam advertising.

Targeted advertising benefits both consumers and businesses because it ensures advertising reaches the people who want to see it, thereby reducing unwanted ads, driving greater sales, strengthening competition, meeting consumers’ desire for advertising, and lowering prices. We believe any limits on such communication would also run afoul of the First Amendment, under which advertising is protected speech that both businesses have a right to speak and consumers have a right to receive.³

In contrast to the approach in the draft APRA, all of the states that have addressed this issue focus their bills on web viewing data across unrelated sites over time, with the focus being on providing choice over the use of this collected data for targeted advertising.

¹ Privacy for America, *Principles for Privacy Legislation*, located [here](#).

² Discussion Draft, *American Privacy Rights Act of 2024*, located [here](#) (hereinafter, “APRA”).

³ *Virginia State Board of Pharmacy v. Virginia Citizens Consumer Council, Inc.*, 425 U.S. 748, 756-67 (1976); *Sorrell et. al. v. IMS Health Inc.*, 564 U.S. 552, 570-71 (2011).

This issue can be prevented if the APRA is amended to support consumer privacy and efficient marketing at the same time in the same way as state laws by allowing data-driven advertising to continue to power innovation, subject to an opt-out choice that is appropriately scoped.

We hope to work constructively with you and your offices to improve the bill, and protect businesses across the country and the nation's economy from the consequences of unworkable federal privacy standards.

* * *

Sincerely,

Christopher Oswald
EVP for Law, Ethics & Gov't Relations
ANA

Alison Pepper
EVP – Government Relations and Sustainability
4A's